

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JAMES COGDELL,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. MADISON LINDEMAN, Tax Id. # 965271, Individually and in his Official Capacity, P.O. RICHARD DELAHANTY, Tax Id. # 961732, Individually and in his Official Capacity, P.O. RUBEN GUERRERO, Tax Id. # 953935, Individually and in his Official Capacity, P.O. CHRISTOPHER HANSEN, Tax Id. # 949082, Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-20, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

**VERIFIED AMENDED
COMPLAINT**

Index No. 26064/2019E

Jury Trial Demanded

**BASIS FOR VENUE:
CPLR § 504(3)**

PARTIES

1. Plaintiff JAMES COGDELL is an African American male, a citizen of the United States, and at all relevant times was a resident of the County, City, and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department ("NYPD"), duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants P.O. MADISON LINDEMAN, Tax Id. # 965271, P.O. RICHARD DELAHANTY, Tax Id. # 961732, P.O. RUBEN GUERRERO, Tax Id. # 953935, P.O. CHRISTOPHER HANSEN, Tax Id. # 949082, and POLICE OFFICERS “JOHN DOE” #1-20, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown), were duly sworn police officers of the NYPD and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

FACTS

8. On or about or between November 14, 2018, at approximately 11:15 p.m., plaintiff, JAMES COGDELL, was lawfully inside of 1216 College Avenue, Bronx, New York.

9. At the aforesaid time and place, plaintiff encountered several of the individually named defendants, LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or “JOHN DOE” #1-20, on the roof of the aforementioned location, who started to violently and brutally attack him.

10. Thereafter, the individually named defendants, LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or “JOHN DOE” #1-20, caused plaintiff to fall over the roof’s ledge of said building, resulting in plaintiff falling approximately six (6) stories from the roof to the ground.

11. At the time of this incident, plaintiff did not engage in any behavior that would justify attacking plaintiff.

12. At the time of this incident, plaintiff was not engaged in any unlawful behavior or any actions that would reasonably justify causing plaintiff to fall from the roof of this six (6) story building to the ground below.

13. Further, at no time on November 14, 2018, was the force used against plaintiff by defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or “JOHN DOE” #1-20 – which caused plaintiff to fall from said roof – reasonable.

14. As a result of this attack and fall, plaintiff almost died and suffered multiple, severe, extreme, and permanent injuries throughout his body, including *inter alia*, severe head trauma and multiple fractures to his legs, feet, back, and pelvis, causing him to become permanently disabled for the rest of his life.

15. After nearly falling his death, defendants then arrested and transported plaintiff to the hospital.

16. While at the hospital, plaintiff remained in police custody for approximately seven (7) days before defendants voided his arrest and/or his arrest was declined prosecution by the Bronx County District Attorney’s Office.

17. At no time on November 14, 2018, did defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or “JOHN DOE” #1-20 possess reasonable suspicion and/or probable cause to stop, question, search, and/or arrest plaintiff.

18. At no time on November 14, 2018, did defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or “JOHN DOE” #1-20 possess information that would lead a reasonable officer to believe reasonable suspicion and/or probable cause existed to stop, question, search, and/or arrest plaintiff.

19. As a result of the foregoing, plaintiff underwent multiple invasive surgeries and was hospitalized for over a month following these surgeries.

20. Subsequently, plaintiff had to return to the hospital for additional surgeries, and upon information and belief, will have to undergo future surgeries as a result of this incident.

21. As a result of these injuries, plaintiff had to reside at a rehabilitation facility for several months.

22. Upon information and belief, plaintiff will continue to receive medical treatment for several years as a result of this incident.

23. To date, plaintiff continues to suffer from severe pain and discomfort from these injuries.

24. As a result of defendants’ aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, loss of liberty, economic damages, and extreme emotional distress.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

25. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

26. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

27. All of the aforementioned acts deprived plaintiff JAMES COGDELL of the rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

28. The acts complained of were carried out by the aforementioned individual defendants, LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or "JOHN DOE" #1-20, in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

29. The acts complained of were carried out by the aforementioned individual defendants in their capacities as corrections officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Department of Corrections, all under the supervision of ranking officers of said department.

30. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

31. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

32. The level of force employed by defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or “JOHN DOE” #1-20 was objectively unreasonable and in violation of his constitutional rights.

33. As a proximate cause of the acts of defendants, plaintiff suffered *inter alia*, loss of liberty, severe physical injury, and severe mental and emotional anguish in connection with the deprivation of his aforementioned constitutional and statutory rights.

THIRD CLAIM FOR RELIEF
FAILURE INTERVENE UNDER 42 U.S.C. § 1983

34. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

35. Defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or “JOHN DOE” #1-20 had an affirmative duty to intercede when plaintiff’s constitutional rights were being violated in their presence.

36. Specifically, defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or “JOHN DOE” #1-20 had an affirmative duty to take reasonable measures to prevent plaintiff from being violently attacked and/or causing him to fall six (6) stories off a roof.

37. Defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or “JOHN DOE” #1-20 violated plaintiff’s constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff’s constitutional rights and the injuries or further injuries caused as a result of said failure.

38. As a result of defendants' failure to intercede when plaintiff's constitutional rights were being violated in his presence, plaintiff has suffered damages including, loss of liberty, permanent physical injuries, mental and emotional injury and pain, mental anguish, suffering, humiliation, and embarrassment.

FOURTH CLAIM FOR RELIEF
DELIBERATE INDIFFERENCE TO PLAINTIFF'S WELFARE & SAFETY UNDER
42 U.S.C. § 1983

39. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

40. Defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or "JOHN DOE" #1-20 had the power to prevent or aid in preventing the commission of said wrongs, could have done so by reasonable diligence, and knowingly, recklessly, or with deliberate indifference and callous disregard for plaintiff's rights failed or refused to do so.

41. By their deliberate indifference to plaintiff's welfare and safety, defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or "JOHN DOE" #1-20 deprived plaintiff of the rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, in violation of rights enforceable under 42 U.S.C. § 1983 including, without limitation, rights guaranteed by the Fourth, Fifth, Eighth, and Fourteenth Amendments of the United States Constitution.

42. Defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or "JOHN DOE" #1-20 acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment with the New York City Police Officers.

43. Defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or “JOHN DOE” #1-20 acted willfully, knowingly, and with the specific intent to deprive plaintiff of his constitutional rights secured by 42 U.S.C § 1983 and by the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution.

44. As a proximate cause of the acts of defendants, plaintiff suffered *inter alia*, severe physical injury, medical expenses, and severe mental and emotional anguish in connection with the deprivation of his aforementioned constitutional and statutory rights.

**FIFTH CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

45. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

46. As a result of the aforesaid conduct by defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or “JOHN DOE” #1-20, plaintiff was subjected to illegal, improper, and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

47. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

**SIXTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

48. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

49. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

50. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Department of Corrections include, but are not limited to, the following unconstitutional practices:

- a) Utilizing excessive force in connection with arrests when there is no excuse or justification for any such force;
- b) Failing to prevent or aid in preventing arrestees from being the victims of brutal acts of physical violence perpetrated by fellow officers;
- c) Failing to intervene to stop fellow officers from engaging in brutal acts of physical violence against arrestees once they have begun;
- d) Deliberate indifference to training officers in how to not pursue arrest in situations that would endanger the life of the arrestee;
- e) Deliberate indifference to training officers in how to apprehend individuals safely in dangerous situations;

51. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiff.

52. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

53. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

54. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

55. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate corrections officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

56. The acts complained of deprived the plaintiff of his right:

- a) To be free from cruel and unusual punishments;
- b) To receive timely and adequate medical care;
- c) To be provided with appropriate safety while in custody;
- d) Not to have summary punishment imposed upon him; and
- e) To receive equal protection under the law.

PENDANT STATE CLAIMS

57. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

58. On or about January 24, 2019, within (90) days after the claim herein accrued, the plaintiff duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

59. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

60. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said hearing was held on March 25, 2019.

61. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

62. Plaintiff has complied with all conditions precedent to maintaining the instant action.

63. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT

64. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

65. Defendants' LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or "JOHN DOE" #1-20 aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

66. As a result of defendants' conduct, plaintiff has suffered severe physical injury/pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY

67. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

68. Defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or "JOHN DOE" #1-20 touched plaintiff in a harmful and offensive manner.

69. Defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or "JOHN DOE" #1-20 did so without privilege or consent from plaintiff.

70. As a result, plaintiff sustained, inter alia, severe bodily injuries, including, but not limited to, severe head trauma and multiple fractures to his legs, feet, back, and pelvis, causing him to be permanently disabled for the rest of his life.

71. As a result of defendants' conduct, plaintiff has suffered severe physical injury/pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE ARREST/IMPRISONMENT

72. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

73. Defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or "JOHN DOE" #1-20 arrested plaintiff in the absence of probable cause and without a warrant.

74. As a result of the foregoing, plaintiff was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated and subjected to handcuffing and other physical restraints.

75. Plaintiff was conscious of said confinement and did not consent to the same.

76. The confinement of plaintiff was without probable cause and was not otherwise privileged.

77. As a result of the aforesaid conduct by defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or "JOHN DOE" #1-20, plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal

proceedings. The aforesaid actions by the defendants constituted a deprivation of plaintiff's rights.

78. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

**FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENCE and GROSS NEGLIGENCE**

79. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

80. On the dates aforesaid, the plaintiff was being attacked by defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or "JOHN DOE" #1-20 and/or their agents, servants and/or employees and/or defendant CITY OF NEW YORK's agents, servants and/or employees.

81. The foregoing incident and the resulting injuries to plaintiff's person were caused solely and as a direct and proximate cause of the carelessness, negligence, and/or gross negligence on the part of the defendant THE CITY OF NEW YORK and/or their servants, agents, employees and/or licensees, and without any negligence on the part of the plaintiff contributing thereto, in that defendants had a duty to prevent plaintiff from being assaulted and injured in the aforementioned manner by defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or "JOHN DOE" #1-20, defendants breached said duty by failing to intervene or take the necessary precautions to prevent the severe injuries sustained, and this failure was objectively unreasonable.

82. By reason of the foregoing, the plaintiff has been seriously and severely injured and damaged, suffered great physical pain, and is permanently caused to suffer pain, inconvenience, extreme emotional distress, and other consequences of such injuries.

FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

83. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

84. The aforementioned conduct was extreme and outrageous and exceeded all reasonable bounds of decency.

85. The aforementioned conduct was committed by defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or "JOHN DOE" #1-20 while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

86. The aforementioned conduct was committed by defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or "JOHN DOE" #1-20 while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

87. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

88. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, and fright.

SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

89. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

90. The defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or “JOHN DOE” #1-20 owed a duty to maintain plaintiff’s safety and well-being.

91. Defendants LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or “JOHN DOE” #1-20 breached that duty by failing to protect him and endangering his physical safety.

92. The aforementioned conduct was extreme and outrageous and exceeded all reasonable bounds of decency.

93. Defendants’ LINDEMAN, DELAHANTY, GUERRERO, HANSEN, and/or “JOHN DOE” #1-20 breach was the direct and/or proximate cause of plaintiff’s injury.

94. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, and fright.

SEVENTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

95. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

96. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned, and supervised all members of its Department of Corrections, including the defendants individually named above.

97. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Department of Corrections including the defendants individually named above.

98. Due to the negligence of the defendants as set forth above, plaintiff suffered physical injury, pain, and trauma, together with embarrassment and humiliation.

99. As a result of the foregoing, plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs, and disbursements of this action.

Dated: New York, New York
November 25, 2020

BY: _____/S
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ATTORNEY'S VERIFICATION

GERALD M. COHEN, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That he is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff JAMES COGDELL in the within entitled action.

That your deponent has read the foregoing **AMENDED COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
November 25, 2020

_____/S_____
GERALD M. COHEN